

Amendment No. 1 to HB2632

Powers
Signature of Sponsor

AMEND Senate Bill No. 2694

House Bill No. 2632*

by deleting all language after the enacting clause and substituting:

SECTION 1. Chapter 62 of the Private Acts of 2016, as amended by Chapter 40 of the Private Acts of 2020, and any other acts amendatory thereto, is amended by deleting subsections (a)-(c) in Section 17-3 and substituting instead:

(a) The board shall be composed of seven (7) members, including five (5) citizen members, and two (2) members of the city council. The citizen members shall be appointed by the city council in the month of May to staggered, three-year terms of office commencing June 1. One (1) citizen member appointment shall be made in 2016, two (2) citizen member appointments shall be made in 2017, and two (2) citizen member appointments shall be made in 2018. This appointment regime shall continue thereafter in perpetuity on a three-year cycle. The members serving from the city council shall be appointed by the city council, with the first such appointment to be effective June 1, 2016, or as soon thereafter as possible. The term of the members of the city council on the board shall be for such time as the city council may fix by ordinance, but in no event to extend beyond such person's term in office. Each member of the board is to serve until his or her successor is appointed and qualified.

(b) No person shall be eligible to hold office as a citizen member on the board until such person shall have been a resident and bona fide freeholder or householder in Bedford County, ratepayer of the utility system for at least two (2) years next preceding the time of his or her appointment, and shall be at least thirty (30) years of age, and a citizen of the United States. The term "ratepayer," for the purpose of appointment to the

board, shall be defined as individuals named on any type of service account record of the system; spouses of individuals named on residential or business account records of the system; any adult member of a residential household who resides at the residential service address; or any owner, officer, or board member of a corporation, partnership, limited liability company, or other business organization for which a business service account is created. No person who holds any kind of office, executive, judicial or legislative, under the United States, the State of Tennessee, Bedford County, Utility Boards, or an employee of the City of Shelbyville, Tennessee, shall be eligible to serve as a citizen member of the board during such term of office or employment; provided, that this shall not apply to notaries public, or to the state national guard. If any member of the board shall cease to possess any of the qualifications for the office, a vacancy shall thereupon immediately be declared. An appointment to complete an unexpired term of office shall be made in the same manner as the original appointment.

(c) Compensation and Benefits. The compensation of citizen members shall be fixed from time to time by ordinance of the city council. The city council members serving on the board shall receive no additional compensation while serving as a board member.

SECTION 2. Nothing in this act shall be construed as having the effect of removing any incumbent from office or abridging the term of any official prior to the end of the term for which such official was elected.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Shelbyville. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3, the public welfare requiring it.